

**SYNTHETIC TRAINING RECORD — FICTIONAL PARTIES, PEOPLE,
PLACES, IDENTIFIERS, AND EVENTS — NOT A REAL FILING**

Blue Ember Rule 30(b)(6) Deposition

Testimony through Dr. Mira Solis under Rule 30(b)(6)

Civil Action No. SYN-WDNC-24-CV-0520

Taken April 7, 2025 in Asheville, North Carolina

Dr. Mira Solis appeared as Blue Ember's designated witness on the organization's contracts, BE-214 program, September shipment, quality disposition, replacement decisions, claimed damages, and preservation. Eli Mercer examined for Granite Heron. Maya Holt represented Blue Ember. The fictional court reporter administered an oath and recorded the testimony.

Counsel agreed that objections would be concise and that an objection not requiring immediate resolution would be preserved. The witness could ask that a question be restated. Documents were marked by descriptive title because the final trial-exhibit numbering had not yet been assigned.

EXAMINATION BY MR. MERCER

Q. Dr. Solis, do you understand you are answering for Blue Ember on the listed subjects?

A. Yes. I prepared through company records and interviews. I will distinguish organizational knowledge from my personal recollection.

Q. Is every statement today a scientific opinion?

A. No. Some answers describe business records and decisions. I am not offering the retained damages analysis.

Position and program responsibility

Q. What was your role in September 2024?

A. I was Chief Operating Officer with responsibility for development operations and escalation across quality, manufacturing, and vendors. The quality reviewers reported through a separate functional line, but I coordinated the response.

Q. What is BE-214?

A. A fictional temperature-sensitive biologic candidate. The lot at issue was intended to demonstrate repeatable process performance. It was not commercial inventory ready for patient distribution.

Q. Why did a transport record matter if the vials could later be tested?

A. The campaign needed both material attributes and evidence that the defined process was followed. A limited assay can tell us something about sampled activity. It does not recreate continuous compliance or necessarily prove uniformity.

Q. Did Blue Ember guarantee the program would receive approval?

A. No. The program had development risk unrelated to this shipment.

Q. Are you claiming every schedule change after September was caused by Granite Heron?

A. We claim the defined replacement and delay period in our computation. We are not assigning every later scientific event to the carrier.

Contract formation and instructions

Q. Identify the principal agreement.

A. BE-GHL-MLS-2023-1101, effective November 1, 2023. It established the general relationship.

Q. What later instruments applied to this load?

A. Quality Agreement QA-BE-GHL-017, Statement of Work SOW-BE214-VAL-04, purchase order BE-PO-240819-2147, Release Specification BE214-RS-03 Revision 3, and rate confirmation RC-240912-087.

Q. Was Revision 3 delivered before the movement?

A. Yes. It became effective August 1 and Granite Heron acknowledged it in connection with the August 19 work order.

Q. State the environmental instruction.

A. Maintain the payload from minus eighty through minus sixty degrees Celsius, with the trailer set to minus seventy. There was no approved excursion window for this validation lot.

Q. Did the contract say any out-of-range reading automatically equals 4.2 million dollars?

A. No. It required quarantine and assessment. Damages depend on what followed and what we can prove.

Q. Who controlled the final release decision?

A. Blue Ember's quality organization, using the specification and available scientific information.

Q. Could procurement personnel amend that technical limit by approving an invoice?

A. No. Commercial processing and quality disposition followed different approval paths, and payment activity could not authorize use of nonconforming validation material.

Preparation and handoff

Q. What did Blue Ember understand about the origin condition?

A. Solstice Gate Analytics completed the certificate, packed the sealed shippers, activated the CTX-9, and documented values within range. Granite Heron signed custody at 11:20.

Q. Was the shipper designed to maintain temperature without trailer refrigeration indefinitely?

A. No. It was a qualified configuration used with continuous frozen transport. Its passive protection supplied margin, not permission to interrupt cooling.

Q. Were the vials visibly damaged at pickup?

A. No exterior damage was recorded.

Q. What device accompanied the load?

A. CryoTrace CTX-9 serial CTX9-44721. It was placed with the payload and set to Eastern Daylight Time.

Q. Did Blue Ember assign tractor GH-4821 itself?

A. Granite Heron assigned the tractor and trailer TR-7714 under the route confirmation. We accepted that planned equipment.

Q. What facility was the destination?

A. Our receiving location at 1847 Cinder Ridge Parkway in Asheville. The planned arrival window ended at 16:00.

Q. Was the destination ready when the carrier arrived?

A. Yes. Frozen receiving personnel were available, and no consignee delay caused the earlier warming interval.

Excursion chronology

Q. Please give the times Blue Ember relies upon.

A. Custody at 11:20, departure at 11:47, threshold crossing at 13:08, highest recorded temperature of minus 42.8 degrees at 13:37, return below minus sixty at 14:02, and delivery at 15:26.

Q. How long was the out-of-range interval?

A. Fifty-four minutes based on the designated logger.

Q. Where do you contend it occurred?

A. The custody and route information place the warming during Granite Heron's Fletcher staging period.

Q. Do you know which hand touched which power connector?

A. Not personally. Operations witnesses and the carrier's investigation address the transition. Blue Ember's organizational position is that continuous refrigeration was not verified.

Q. Did the temperature recover before delivery?

A. It returned within the band at 14:02. Recovery did not remove the preceding excursion.

Q. Was Blue Ember called at 13:08?

A. Our records show no timely escalation then. We learned the confirmed curve during receiving and subsequent exchange.

Quarantine and September 16 decision

Q. What happened at 15:26?

A. Receiving took physical custody, preserved the sealed shipment, downloaded the device, and placed the lot in frozen quarantine. The signature was not quality release.

Q. When was deviation BE-QA-DEV-2024-0912 opened?

A. The receiving event triggered it on September 12.

Q. What information did the quality team review?

A. The raw time series, specification, packaging and custody information, intended validation use, available stability knowledge, confirmatory testing, and carrier response.

Q. Did the assay prove every vial was inactive?

A. No, and our disposition does not say that. Tested samples retained measurable activity.

Q. Then why reject the lot?

A. The validation protocol required documented temperature compliance. The magnitude and duration created uncertainty that the limited testing could not eliminate for that intended use.

Q. Who authorized rejection?

A. Blue Ember's quality decision makers, with my program acknowledgment, on September 16.

Q. Was Granite Heron allowed to comment?

A. Yes. It requested support and disputed the consequence, but it did not own product release.

Causation and possible other uses

Q. Did Blue Ember explore a nonvalidation use for the material?

A. We evaluated whether limited research use was appropriate. That did not restore the lot's validation purpose or meaningfully offset the claimed embodied cost.

Q. Was the lot destroyed immediately?

A. No. It remained segregated while testing, investigation, claim exchanges, and disposition steps occurred. Destruction was controlled and documented later.

Q. Could a packaging defect have caused the warming?

A. We found no evidence of one. The trailer and logger chronology showed a loss of environmental control while Granite Heron held the shipment.

Q. Could Blue Ember's receiving process have lengthened the excursion?

A. The device returned below minus sixty at 14:02, well before the 15:26 delivery. Receiving did not cause that recorded interval.

Q. Do you distinguish physical potency from validation suitability?

A. Yes. That distinction is central. The testing did not show universal destruction, but the lot did not meet the accepted custody attribute needed for the planned campaign.

Q. Is that position documented contemporaneously?

A. It appears in the deviation and September 16 lot-disposition record, not merely in litigation testimony.

Direct-cost computation

Q. Explain the 1.35 million dollar component.

A. It is the cost embodied in the completed validation lot: manufacturing services, materials, testing, and allocated campaign work traced to project records. It is also the declared payload value, although our damage support does not rely only on that declaration.

Q. Is corporate overhead included?

A. Only amounts allocated under the ordinary project accounting method used before the dispute. The expert will address any challenged allocation.

Q. What makes up the other 850,000 dollars of direct loss?

A. Replacement production, additional analytical and release services, controlled disposal, and directly associated vendor work, net of identified credits.

Q. Did Blue Ember subtract costs it would have incurred anyway?

A. The schedule attempts to exclude ordinary forward development work and isolate duplicated or incremental replacement expense.

Q. Has insurance paid the 2.2 million dollars?

A. No payment duplicating that amount had been received as of this deposition. We would disclose a later credit.

Q. Are the figures subject to expert analysis?

A. Yes. Kellan Brooks will explain the ledger mapping and any adjustments.

Delay-loss computation

Q. How does Blue Ember reach 2 million dollars in delay loss?

A. It uses a bounded period linked to the replacement schedule, contemporaneous operating forecasts, expected contribution, and milestone timing. It does not assume indefinite sales.

Q. Was BE-214 approved for sale in September 2024?

A. No. The model reflects development and collaboration economics, not retail sales of an approved drug.

Q. What risks existed regardless of shipment?

A. Technical performance, later manufacturing, review, financing, and market conditions. The calculation applies risk adjustments and does not treat success as certain.

Q. Why is any forecast recoverable in Blue Ember's view?

A. The work order identified validation timing, and our schedule uses pre-event planning records for a limited period. Granite Heron disputes foreseeability and certainty, which the factfinder will decide.

Q. Does the 2 million include the 850,000 replacement cost?

A. No. They are separate ledger and time categories.

Q. Would earlier successful replacement reduce delay loss?

A. Yes, if a feasible, qualified alternative could actually advance the program. The dispute is whether Cobalt Finch met that description when a decision was required.

October 2 Cobalt Finch offer

Q. When did Blue Ember receive the offer?

A. October 2, 2024.

Q. What did it offer?

A. A production slot at Cobalt Finch's Durham facility beginning December 2, subject to acceptance and a technical-transfer path.

Q. What was the response deadline?

A. October 4 at 17:00.

Q. Did the proposal estimate 300,000 dollars for transfer and qualification?

A. That was the working incremental estimate, subject to scope and findings.

Q. Did Cobalt Finch have biologics experience?

A. Yes. We did not regard it as incompetent. The issue was BE-214 readiness and what could be completed reliably before the slot.

Q. Was the suite physically available?

A. Cobalt Finch said it could hold the December capacity through the deadline.

Q. Did Blue Ember understand that earlier capacity could reduce delay?

A. Certainly. That is why we reviewed it. Capacity was attractive, but capacity plus a short proposal was not identical to an approved executable campaign.

Q. Did the offer cover transportation of new materials to Durham?

A. It contemplated later logistics planning; those movements and their qualification details were not fully priced or finalized by the response deadline.

Diligence during the offer window

Q. What did Blue Ember do between October 2 and October 4?

A. Operations, technical, quality, and finance personnel reviewed the facility package, transfer tasks, analytical readiness, material availability, change-control route, budget, and schedule. We sent questions and held a call with Dr. Nia Calder.

Q. Did anyone visit Durham in those forty-eight hours?

A. No on-site audit occurred before the deadline. There was insufficient time to complete one.

Q. Did Cobalt Finch refuse an audit?

A. No. It proposed an expedited assessment after acceptance.

Q. Could Blue Ember have accepted conditionally?

A. The proposal contemplated a commitment subject to technical work, but the cancellation exposure and resource diversion were material. We did not obtain a no-risk hold.

Q. What information remained unresolved?

A. Method transfer detail, equipment comparability, final batch-record alignment, quality-system review, and whether all inputs could arrive on the proposed timeline.

Q. Did the team assign probabilities?

A. It used qualitative risk ratings and schedule scenarios, not a single numerical probability during the deadline.

Decision not to accept the December slot

Q. Who made the decision?

A. I made the operational decision after recommendations from technical and quality leaders. The quality organization did not say Cobalt Finch could never qualify; it said readiness was not established within the available information.

Q. Was cost the principal reason?

A. No. Three hundred thousand dollars was significant but manageable. The dominant concerns were execution confidence, comparability, and risk that a failed expedited transfer would consume time without producing a valid lot.

Q. Did Blue Ember ask Granite Heron to fund the alternative?

A. We had claim discussions, but no unconditional carrier-funded option was secured before 17:00 on October 4.

Q. Could Blue Ember have accepted and later canceled?

A. At a cost and with committed personnel and materials. The question was not whether cancellation was physically possible; it was whether the proposed course was reasonable then.

Q. Did you document the rejection?

A. Yes. The change-control assessment and decision record state the open items and our choice to retain Aurora Quay.

Q. You agree reasonable people may evaluate that choice differently?

A. Yes. I do not agree it was unreasonable.

Aurora Quay campaign

Q. Describe Aurora Quay's status.

A. Aurora Quay Manufacturing Center in Raleigh was already within Blue Ember's qualified network for the relevant work. We had a reserved campaign beginning March 3, 2025.

Q. Was that reservation made before the loss?

A. The planning relationship and capacity work predated final rejection; the March slot became the dependable replacement path after the event.

Q. Why not pursue both facilities?

A. A parallel transfer would have divided limited technical staff, required duplicate materials and review, and created its own schedule and cost risk. We chose the path with higher execution confidence.

Q. Did Aurora Quay charge cancellation fees?

A. There were reservation consequences, but they were not the sole reason. Our records show the comparative cost and readiness.

Q. When did the replacement campaign proceed?

A. It began as planned on March 3, 2025, with the resulting activities reflected in the replacement schedule and ledger.

Q. Did the campaign eliminate every future delay?

A. No. It restored the validation path. Later program events are treated separately from the bounded damages period.

Granite Heron's mitigation model

Q. You understand Granite Heron says the alternative would avoid 1.8 million dollars?

A. Yes.

Q. And it subtracts 300,000 dollars of incremental expense to reach a 1.5 million dollar deduction?

A. That is my understanding of its arithmetic.

Q. Do you challenge the arithmetic?

A. The subtraction is arithmetic. We challenge the premise that the December campaign would timely succeed and avoid the stated loss.

Q. If the alternative were certain and equivalent, would a net deduction be appropriate?

A. A proven reasonable alternative and net avoided loss should be considered. I do not accept certainty or equivalence here.

Q. Is 300,000 dollars included in your 4.2 million dollar request?

A. No, because we did not incur a Cobalt Finch transfer cost.

Q. Could the factfinder choose an offset smaller than either side's full position?

A. It could evaluate capability, risk, and net effect based on the evidence and instructions.

Q. Are liability and mitigation the same factual question?

A. No. One concerns the shipment breach and causation; the other concerns our response and avoidable loss.

Forecasts, invoices, and record boundaries

Q. Were the forecasts created after lawyers became involved?

A. The principal program forecasts predate the shipment. Litigation schedules later organized those sources and identified the claim period.

Q. Can every forecast input be tested?

A. The sources, dates, assumptions, and adjustments are disclosed. Some judgments are business estimates rather than guaranteed facts.

Q. Are replacement invoices maintained in the ordinary ledger?

A. Yes. Project codes and vendor records allow the parties to trace the claimed 850,000 dollars and challenge items.

Q. Has Blue Ember preserved the Cobalt Finch emails?

A. Yes, including the offer, questions, deadline communications, capability materials, and nonprivileged decision records.

Q. Did Blue Ember delete informal messages after filing?

A. We issued preservation instructions. I am unaware of intentional deletion of responsive information.

Q. Are raw device records separate from later exhibits?

A. Yes. The source CTX-9 export is preserved. A graph or portable report is a presentation of it and should not be mislabeled as unaided machine interpretation.

Organizational admissions and limits

Q. Blue Ember admits the assay did not show complete inactivity, correct?

A. Correct.

Q. It admits Cobalt Finch offered real capacity?

A. It offered a real slot subject to the terms and unfinished qualification work we discussed.

Q. It admits the proposed incremental cost was approximately 300,000 dollars?

A. That was the estimate presented during the window.

Q. It does not admit the alternative would avoid 1.8 million dollars?

A. Correct. That is disputed.

Q. Does Blue Ember contend Granite Heron intentionally warmed the load?

A. No. Our claim is breach of accepted custody obligations, not intentional product damage.

Q. Does Blue Ember seek punitive damages?

A. Not under the current contract claim.

Q. Is your testimony intended to replace expert opinions?

A. No. I explained company decisions and records. Brooks will address damages, and scientific witnesses may address specialized testing within their disclosed scope.

Q. Have you answered for the organization as prepared today?

A. Yes, subject to correction if a record shows an inadvertent error.

Review and conclusion

Q. One final point: did the September event alter the underlying dates of the agreements?

A. No. The master agreement was November 1, 2023; the quality agreement January 15, 2024; Revision 3 August 1; the statement of work and purchase order August 19; and the rate confirmation September 11.

Q. Were several of those documents attached to later pleadings?

A. Yes. Their litigation submission dates do not change when they were executed, issued, or effective.

Q. Are the exact shipment times stated today based on preserved records?

A. Yes: 11:20 custody, 11:47 departure, 13:08 threshold crossing, 13:37 peak, 14:02 recovery, and 15:26 delivery, all Eastern Daylight Time.

Q. Do you reserve any correction?

A. Only a good-faith correction after reviewing the transcript. I would not change the substance without identifying the reason.

The deposition concluded subject to the agreed review procedure. Dr. Solis later certified that she reviewed the fictional transcript and listed no substantive correction. The reporter retained the marked-document list and maintained the transcript as a text-based exercise record. No actual personal contact information or protected health information appears in this document.